

However, this flaw appears to be one which the Defendant can easily remedy by procuring counsel.

Disposition

Plaintiff's Motion to Strike the entire Answer is granted.

Plaintiff's request for Entry of Default is denied.

Defendant will have 10 days from the date of this Order to file an amended Answer.

Plaintiff to file Order.

7. 9:00 AM CASE NUMBER: L25-04442

CASE NAME: CAPITAL ONE N.A. VS. JAY POOVAKAN

*HEARING ON MOTION IN RE:

FILED BY: CAPITAL ONE N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

However, Plaintiff apparently mailed notice of this Motion to Defendant at an address which has not been verified in any fashion. Defendant was not served with process, so the court cannot compare the two addresses, and the Defendant has not filed any documents with the court.

The document purportedly signed by Defendant, a stipulation filed by Plaintiff on 7/22/25, does not provide an address for the Defendant.

Disposition

This Motion will be continued to 7/7/26, 9am.

Plaintiff must serve Defendant with notice and a copy of the Motion.

Plaintiff must file the Order.

8. 9:00 AM CASE NUMBER: L25-04535

CASE NAME: CAPITAL ONE N.A. VS. KHADIJA BRYANT

*HEARING ON MOTION IN RE: SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION

FILED BY: CAPITAL ONE N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where she was personally with notice of the Summons and Complaint. The address was also in an attachment to the Complaint.

Though Defendant never filed an Answer, she did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that she was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed in the attachment to the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$11,654.51, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$0.

Costs are \$873.61.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$12,528.12.

Plaintiff to file order on Motion, as well as submit Judgment.

9. 9:00 AM CASE NUMBER: L25-05601

CASE NAME: AQUA FINANCE, INC. VS. SUSAN HYDE

***HEARING ON MOTION IN RE: MOTION FOR LEAVE TO FILE FIRST AMENDED ANSWER FILED BY DEF**